

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

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ALEXANDER BROWN,

Plaintiff,

-against-

Plaintiff designates Queens  
County as the venue of this action  
based on the county of occurrence

THE CITY OF NEW YORK and ROGER HAYNES,

**SUMMONS**

Defendants.

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To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
November 12, 2024

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin  
Edward Sivin  
Attorneys for Plaintiff  
20 Vesey St., Suite 1400  
New York, NY 10007  
(212) 349-0300

The City of New York: c/o NYC Corp. Counsel, 100 Church St., New York, NY 10007

P.O. Roger Haynes: c/o NYPD Patrol Borough Brooklyn South Community Response Team,  
2820 Snyder Ave., 3rd floor, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

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ALEXANDER BROWN,

Plaintiff,

**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK and ROGER HAYNES,

Defendants.

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Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his complaint  
herein, alleges as follows, upon information and belief:

**THE DEFENDANTS**

1. That at all times herein mentioned, Defendant The City of New York  
(hereinafter “the City”) was and is a municipal corporation, duly organized and existing under  
and by virtue of the laws of the State of New York.
2. That at all times herein mentioned, the City operated, controlled, managed, and  
maintained the New York Police Department (hereinafter the “NYPD”).
3. That at all times herein mentioned, Defendant Roger Haynes (hereinafter  
“Haynes”) was a police officer employed by the NYPD.
4. That at all times herein mentioned, Haynes was acting within the course and  
scope of his employment with the NYPD.
5. That at all times herein mentioned, Haynes was acting under color of state law.
6. That prior to the institution of this action, and within ninety days of the accrual  
of the state-law causes of action herein, a notice of claim and intention to sue was duly served  
upon and filed with Defendants; that this action was not commenced until the expiration of thirty

(30) days after such notice of claim and intention to sue was presented and Defendants have neglected and/or refused to make adjustment or payment thereon; and this action is being commenced within one year and ninety days after the causes of action accrued herein.

### **THE FACTS**

7. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

8. That on or about September 30, 2023, Plaintiff was seated in the driver's seat of a motor vehicle that was stopped at or around the intersection of Steinway Street and 28<sup>th</sup> Avenue, in Queens, NY.

9. That while Plaintiff was seated in the stopped motor vehicle, members of the NYPD, including but not limited to Haynes (hereinafter referred to collectively as "the officers"), approached the vehicle and ordered Plaintiff to exit the vehicle.

10. That when they ordered Plaintiff to exit the vehicle, the officers did not have probable cause or reasonable suspicion to believe that Plaintiff had committed or was about to commit any crime or criminal violation.

11. That Plaintiff nevertheless complied with the officers' order, and exited the vehicle.

12. That after Plaintiff exited the vehicle, the officers searched Plaintiff's vehicle without a warrant and without Plaintiff's consent.

13. That when they searched the vehicle, the officers did not have probable cause or reasonable suspicion to believe that Plaintiff had committed or was about to commit any crime or criminal violation, or that the vehicle contained any illegal contraband or evidence of a crime.

14. That upon searching the vehicle, the officers did not recover any illegal contraband or evidence of a crime.

15. That despite not having probable cause or reasonable suspicion to believe that Plaintiff had committed or was about to commit a crime, the officers then arrested Plaintiff without a warrant.

16. That after arresting Plaintiff, the officers transported Plaintiff to a police precinct without Plaintiff's consent, and physically detained Plaintiff inside the precinct.

17. That after transporting Plaintiff to the precinct, Haynes initiated a prosecution against Plaintiff by issuing Plaintiff a Criminal Court Appearance Ticket, charging him with illegally "idling," a violation.

18. That Haynes did not have probable cause to believe that Plaintiff was guilty of the violation with which he was charged in the Criminal Court Appearance Ticket.

19. That as a result of the prosecution, Plaintiff was required to appear in court to defend against the charge, and suffered a significant deprivation of his liberty.

20. That on or about October 18, 2023, the criminal charge against Plaintiff was dismissed, and the criminal proceeding terminated favorably to Plaintiff.

21. That the aforementioned actions by Haynes were intentional and malicious in nature.

22. That as a result of the actions of Defendants, Plaintiff suffered significant injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, was deprived of his liberty, sustained lost earnings and other economic loss, and has been otherwise damaged.

**FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS**  
**(False Arrest/Imprisonment Under NY State Law)**

23. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

24. That the aforementioned actions of the officers constituted a false arrest and false imprisonment of Plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

**SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS**  
**(Malicious Prosecution Under NY State Law)**

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the aforementioned actions of the officers constituted a malicious prosecution of Plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

**THIRD CAUSE OF ACTION AGAINST HAYNES**  
**(42 USC § 1983 Claim Arising from Fourth & Fourteenth Amendment Violations)**

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned actions of the Haynes in forcibly seizing Plaintiff, ordering Plaintiff to exit his vehicle, searching Plaintiff's vehicle, and arresting and detaining Plaintiff, constituted illegal searches and seizures of Plaintiff, in violation of rights guaranteed to Plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle Plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

**FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS**  
**(NYC Administrative Code § 8-802)**

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforesaid actions by Defendants constituted unreasonable searches and seizures of Plaintiff, in violation of Plaintiff's rights pursuant to NYC Administrative Code § 8-802, and entitle Plaintiff to recover monetary damages under NYC Administrative Code § 8-803.

**FIFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS**  
**(NY Criminal Procedure Law § 150.20)**

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforesaid actions by Defendants in arresting Plaintiff and transporting him to a precinct, as opposed to issuing to Plaintiff a Summons or Criminal Court Appearance Ticket on the scene, constituted a violation of NY Criminal Procedure Law § 150.20, and entitles Plaintiff to recover monetary damages from Defendants.

**SIXTH CAUSE OF ACTION AGAINST THE CITY**  
**(Negligent Hiring, Training, Supervision, and Retention)**

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforesaid incidents and resulting damage to Plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, supervision, and retention of Haynes.

35. That all of the causes of action herein fall within one or more of the

exceptions set forth in CPLR Article 16 with respect to joint and several liability.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on the foregoing causes of action for compensatory damages and punitive damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and attorney's fees against Defendants pursuant to 42 U.S.C. § 1988 and NYC Administrative Code § 8-805, and Plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York  
November 12, 2024

Yours, etc.  
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin  
Edward Sivin  
Attorneys for Plaintiff  
20 Vesey St., Suite 1400  
New York, NY 10007  
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the Plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in Plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York  
November 12, 2024

*Edward Sivin*

EDWARD SIVIN